

Plaintiff's Alternative Request for Relief: In the alternative, Plaintiff requests that the Court deny or continue the motion under Code of Civil Procedure § 437c(h). CCP 437c(h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." The declaration in support of the continuance request must describe the discovery that is necessary to resist the motion. *Franzee v. Seeley* (2002) 95 Ca.4th 627, 634-635. A party who seeks continuance under CCP 437c(h) must show why the discovery necessary to oppose the motion for summary judgment or summary adjudication could not have been completed sooner and accordingly requires the court to grant the continuance. *Braganza v. Albertson's LLC* (2021), 67 Cal. App. 5th 144. It is not sufficient merely to indicate that further discovery or investigation is contemplated. *Bahl v. Bank of America* (2001) 89 Ca.4th 389, 396-397.

Here, Plaintiffs' argument and affidavit state only that Plaintiff needs to conduct additional discovery to obtain additional evidence to support its case. Plaintiff does not explain what essential facts may exist, and does not state any reasons those facts cannot be presented. The Court also notes that Plaintiff previously brought its own Motion for Summary Adjudication on this very same issue regarding establishing Good News's duty of care, which was denied. The request to deny or continue the hearing on this motion pursuant to CCP 437c(h) is therefore denied.

The undisputed evidence establishes that Good News Rescue Mission did not own, possess, or control the property where the October 8, 2024 attacks occurred, nor did it own, possess, or control The Manor at the time of the attacks. Good News had no involvement in the "Future Story" program, no role in Witcher's admission or supervision, and no special relationship with the Plaintiffs. Plaintiff has failed to produce competent, admissible evidence raising a triable issue of material fact on the threshold question of duty. Plaintiff's failure to file a required Separate Statement provides an additional independent basis to grant the motion.

Defendant Good News Rescue Mission's Motion for Summary Judgment is **GRANTED** as to all causes of action in both the Sims action (Case No. 25CV-0208112) and the Ceremony action (Case No. 25CV-0208573). Defendant has lodged a proposed order which will be executed.

9:00 a.m. Review Hearings

BAUDIZZON VS. RODRIGUES

CASE NUMBER: 24CV-0205393

This matter is on calendar for status review. Plaintiff has filed a Status Statement which indicates the matter has settled as to Defendant Rodrigues. The case remains open to pursue Plaintiff's uninsured motorist claim. Plaintiff requests a continuance to November 2026 in order to pursue that claim. Today's review hearing is continued to **Monday, November 9, 2026, at 9:00 a.m. in Department 64** for status. No appearances are necessary on today's calendar.

JAMES VS. GERLINGER FOUNDRY AND MACHINE WORKS INC.

CASE NUMBER: 25CV-0206862

This matter is on calendar for review regarding status of settlement. At the April 6, 2026 review hearing, the parties informed the Court that this matter had settled. The Court directed the parties to file a notice of settlement as required by CRC 3.1385. No notice of settlement has been filed.

The Court also directed the parties to submit a status statement five days prior to today's hearing. No status statement has been filed. Appearances are necessary on today's calendar to provide a status of the case.

MCCOY, ET AL. VS. MILLER, ET AL.

CASE NUMBER: 25CV-0207500

This matter is on calendar for review regarding status of pleadings and possible trial setting. The Court granted Plaintiff leave to file a Second Amended Complaint. It was filed May 7, 2026. The Order granting leave provided that Defendants had 30 days from service to respond. Tri Counties Bank has filed an Answer to the SAC. The Miller defendants have not, and their time to file has not yet run. Today's review hearing is continued to **Monday, June 29, 2026 at 9:00 a.m. in Department 64** for status of responsive pleadings and possible trial setting. No appearances are necessary on today's calendar.

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.

CASE NUMBER: 25CV-0208108

This matter is on calendar for trial setting. Plaintiff has filed a status statement which indicates the parties have agreed to a trial date in November 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates and to discuss the reasons for a selection of trial date seventeen months from now.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.

CASE NUMBER: 23CV-0203137

This matter is on calendar for review regarding status of default judgments. All defendants have been defaulted. Plaintiff's counsel informed the Court at the last review hearing that Plaintiff is deceased and Counsel intended to file a motion to substitute Plaintiff's widow as successor in interest. That motion has been filed and is set for hearing in July. Today's review hearing is therefore continued to **Monday, August 10, 2026, at 9:00 a.m. in Department 64** for review regarding status of default judgments. No appearances are necessary on today's calendar.

TD BANK USA, N.A. VS. JEANTET

CASE NUMBER: 24CVG-00749

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 4, 2025 indicating the matter would be dismissed no later than April 11, 2027. The matter is continued to **Tuesday, June 1, 2027 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on June 1, 2027 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the June 1, 2027 hearing. No appearance is necessary on today's calendar.